

STATE OF NEW YORK

5553--B

Cal. No. 708

2025-2026 Regular Sessions

IN SENATE

February 24, 2025

Introduced by Sen. COMRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public service law, in relation to enacting the "rate hike notice act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "rate hike notice act".

3 § 2. Subdivision 12 of section 66 of the public service law is amended
4 by adding a new paragraph (m) to read as follows:

5 (m) Within one business day of the publication of the information
6 required pursuant to subparagraph (i) of paragraph (l) of this subdivi-
7 sion, the commission shall require each utility to send electronic
8 notice of a proposed rate increase via text to all customers for whom
9 such utility contacts through text provided that such customers have
10 been provided an option to opt-out of such contact. The text shall
11 inform such customer that such utility is proposing a rate increase in
12 the customer's service area. Such text shall contain the following:

13 (i) the name of the utility proposing a rate increase;

14 (ii) the percentage increase to electricity and gas rates for the
15 typical residential customer;

16 (iii) the percentage increase to electricity and gas rates for the
17 typical commercial customer;

18 (iv) instructions for where ratepayers can find additional information
19 pertaining to the rate case; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(v) clarification that this rate increase will not take effect until approved or modified by the commission. Further, within one business day of the publication of the information required pursuant to subparagraph (i) of paragraph (l) of this subdivision, the commission shall also require each utility to send electronic notice of a proposed rate increase via email to all customers for whom such utility contacts through email, provided that such customers have been provided an option to opt-out of such contact, and such email notice shall include information identical to the information provided on the commission's website pursuant to paragraph (l) of this subdivision. In addition, each utility shall include a notice of a proposed rate increase in each customer's next monthly bill statement and such notice in the monthly billing statement shall consist of a separate page which shall include information identical to the information provided on the commission's website pursuant to paragraph (l) of this subdivision.

§ 3. This act shall take effect on the sixtieth day after it shall have become a law; provided, however, it shall not apply to any proceeding before the Public Service Commission relating to a major change in rates that was commenced prior to the effective date. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.